



CHAPTER 39.

An Act to amend the Anglo-Portuguese Commercial Treaty Act, 1914. A.D. 1916.
[23rd August 1916.]

WHEREAS the treaty of commerce and navigation set out in the Schedule to the Anglo-Portuguese Commercial Treaty Act, 1914 (hereinafter referred to as the "principal Act"), has not been ratified, and in order to give effect to the intention of the said treaty it is expedient further to limit the use of the description "port" as applied to wine : 5 & 6 Geo. 5.
c. 1.

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The description "port" applied to wine the produce of Portugal, imported into the United Kingdom after the commencement of this Act, shall be deemed to be a false trade description within the meaning of the Merchandise Marks Act, 1887, if the wine on importation into the United Kingdom was not accompanied by a certificate issued by the competent Portuguese authorities to the effect that it was a wine to which by the law of Portugal the description "port" may be applied, and that Act shall have effect accordingly : Further limitation of the use of the description "port."
50 & 51 Vict.
c. 28.

Provided that it shall be a good defence to any proceedings under that Act in respect of such a description as aforesaid if it is proved that the wine to which the description is applied is intended solely for exportation from the United Kingdom.

(2) This provision is in addition to and not in derogation of any of the provisions contained in the principal Act.

2.—(1) This Act may be cited as the Anglo-Portuguese Commercial Treaty Act, 1916, and the principal Act and this Short title, citation, and

[CH. 39.]

Anglo-Portuguese Commercial [6 & 7 GEO. 5.]
Treaty Act, 1916.

A.D. 1916. Act may be cited together as the Anglo-Portuguese Commercial Treaty Acts, 1914 and 1916.
commence-
ment.

(2) This Act shall come into operation at the expiration of one month after the date of the passing of this Act.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament,